

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where the fraud cause of action is not adequately pleaded, it would not support the claim for punitive damages. Such is the case here.

For the foregoing reasons, Defendant's motion is **granted** with respect to the punitive damages allegations.

Attorney's Fees

Defendant moves to strike Plaintiffs' prayer for attorney's fees on the grounds that plaintiffs have not alleged any contractual provision that would entitle them to attorney's fees.

While Defendant is correct that Plaintiffs have not alleged any contractual provision that would entitle them to attorneys' fees, unsupported attorneys' fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, "[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorney's fees are recoverable as costs if authorized by statute, contract or law. (CCP, § 1033.5, subd. (a)(10).)

As a consequence, Defendant's motion is **denied** with respect to the attorney's fees allegations.

Statutory and Liquidated Penalties

Similarly, Defendants move to strike Plaintiffs' prayer for "statutory damages and liquidated penalties." However, for similar reasons as above, the Court **denies** the motion as to this portion of Plaintiffs' prayer for relief.

14. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: TO 1ST AMENDED COMPLAINT
FILED BY: JOHN MUIR HEALTH WALNUT CREEK MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant John Muir Health, Defendant John Muir Health Walnut Creek Medical Center, Defendant John Muir Health Organized Medical Staff, and Defendant Contra Costa Pediatric Venture LLC (collectively, "Defendants" or "JMH")'s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint.

Defendant demurs to Plaintiffs' causes of action for (4) Negligent infliction of emotional distress

(Ofelia Noroozi), (5) Negligent infliction of emotional distress (Payman Noroozi), (6) Negligent infliction of emotional distress (Sahar Noroozi), (7) fraud, and (8) tort per se on several grounds.

For the following reasons, the Demurrer is **sustained**, with leave to amend.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

4, 5, 6. Negligent Infliction of Emotional Distress

Defendants argue that Plaintiffs have not alleged facts sufficient to state their causes of action for negligent infliction of emotional distress.

“[A] plaintiff may recover damages for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury producing event at the time it occurs and is then aware that it is causing injury to the victim; and (3) as a result suffers serious emotional distress—a reaction beyond that which would be anticipated in a disinterested witness and which is not an abnormal response to the circumstances.” (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 667–668; accord *Downey v. City of Riverside* (2024) 16 Cal.5th 539, 550.) “Neither our precedent nor considerations of tort policy support requiring plaintiffs asserting bystander emotional distress claims to show contemporaneous perception of the causal link between the defendant’s conduct and the victim’s injuries.” (*Downey, supra*, 16 Cal.5th at p. 560.) Nevertheless, the Supreme Court’s analysis in *Bird v. Saenz* (2002) 28 Cal.4th 910 “remains the controlling precedent for negligent infliction of emotional distress claims arising from the provision of deficient medical care to a close relative.” (*Id.* at p. 560, fn. 11.)

“*Bird* placed particular emphasis on how difficult—often impossible—it generally is for laypersons to recognize in the moment that a course of medical treatment is causing injury. Even when plaintiffs are present at the scene of the injury-causing event and observe conduct that they later realize caused injury to a close relative, their lack of medical knowledge will ordinarily keep them from being ‘then aware that it [was] causing injury to the victim.’ [Citation].” (*Downey, supra*, 16 Cal.5th at p. 554.) “In such cases, the injury-causing events or conduct are not traumatizing because they are perceived as injury-causing only in retrospect, when the observer is affected by the event’s results.” (*Ibid.*) “*Bird* itself made clear that the injury caused by medical negligence is different in this regard from many

other types of injury-producing events. We explained that the invisibility of injury-causing events resulting from deficient medical care makes a typical medical negligence case distinguishable from, for instance, a case arising from ‘an explosion, traffic accident, or electrocution.’ [Citation].” (*Ibid.*)

Here, Plaintiffs allege that Amin Noroozi died following a traumatic diving accident “due to Defendants’ gross negligence in managing life-threatening complications that should have been anticipated and treated according to established medical protocols.” (FAC at ¶ 1.) They allege several “systemic failures in post-surgical care of Amin Noroozi’s spinal cord injury” (*id.* at 16:9) including “treat[ing] Amin with multiple drugs that were contraindicated for his specific condition” (*id.* at 17:10-11) which “exacerbated his cardiovascular instability and contributed to his deterioration.” (*id.* at ¶ 52(A).) They also allege that “Amin experienced severe thermoregulatory dysfunction” as a result of Defendants’ failure to implement “appropriate temperature monitoring and cooling protocols from the outset.” (*id.* at ¶ 52(B).) Plaintiffs allege that Defendants inadequately responded to Amin Noroozi’s severe hypokalemia and failed to adequately manage his sodium levels. (FAC at ¶ 52(D).) Plaintiffs further allege Defendants failed to implement basic infection screening protocols (*id.* at ¶ 52(E)), exacerbated decedent’s acute kidney injury (*id.* at ¶ 52(F)), and that Defendants “failed to properly assess and treat neurogenic shock resulting from Amin’s high cervical injury.” (*id.* at ¶ 52(G).

Plaintiffs also allege that Defendants failed to “effectively address sepsis, a 109-degree temperature, and unbalanced potassium levels[.]” (*id.* at ¶ 128.) They further allege that Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi were each at Amin Noroozi’s bedside when his fever spiked to 109 degrees and he was not provided with any intervention besides Ibuprofen. (*id.* at ¶¶ 131, 138, 144.)

The Supreme Court in *Bird* drew an important distinction between circumstances involving unperceived medical errors in providing treatment and the circumstances in *Ochoa v. Superior Court* (1985) 39 Cal.3d 159, where the “injury-producing event was the failure of custodial authorities to respond significantly to symptoms obviously requiring immediate medical attention.” (*Bird, supra*, 28 Cal.4th at pp. 919-920.) In drawing this distinction, the Court explained that “[s]uch a failure to provide medical assistance, as opposed to a misdiagnosis, unsuccessful treatment, or treatment that turns out to have been inappropriate only in retrospect, is not necessarily hidden from the understanding awareness of a layperson.” (*id.* at p 920.) Although Plaintiffs argue that the alleged conduct in their amended complaint falls within the former category (see Opp. at 6:18-24), the pleaded facts appear to place the action within the latter category. Plaintiffs’ allegations suggest continued misdiagnosis, unsuccessful treatment, and use of inappropriate treatments of the decedent during his hospitalization rather than a complete failure to diagnose his condition or provide any treatment to him. (*Bird, supra*, 28 Cal.4th at pp. 921 [“In any event, a rule permitting bystanders to sue for NIED on account of unperceived medical errors hidden in a course of treatment cannot be reconciled with *Thing*’s requirement that the plaintiff be aware of the connection between the injury-producing event and the injury.”].)

For these reasons, Defendants’ demurrer to the fourth, fifth, and sixth causes of action for negligent

infliction of emotional distress is **sustained**, with leave to amend.

7. Fraud

Defendants demur to Plaintiffs' cause of action for fraud on the grounds that it lacks the requisite specificity.

"The elements of fraud are misrepresentation, knowledge of falsity, intent to induce reliance on the misrepresentation, justifiable reliance on the misrepresentation, and resulting damages." (*Reeder v. Specialized Loan Servicing LLC* (2020) 52 Cal.App.5th 795, 803 [citing *Lazar v. Superior Court* (1996) 12 Cal.4th 631].)

"In California, fraud must be pled specifically; general and conclusory allegations do not suffice." (*Lazar, supra*, 12 Cal.4th at p. 645.) The particularity requirement necessitates that facts be pleaded that show how, when, where, to whom, and by what means of the representations that were allegedly tendered. (*Ibid.*) Further, "[a] plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must 'allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.'" (*Id.* [quoting *Tarmann v. State Farm Mutual Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157].)

The Court agrees that Plaintiffs' FAC lacks this specificity. Plaintiffs must allege facts as to fraudulent representations made by JMH – specifically, who made fraudulent representations on behalf of JMH and their authority to speak. (See *Lazar, supra*, 12 Cal.4th at p. 645; *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060.) Plaintiffs' reliance on general marketing material is insufficient. Furthermore, it does not appear from the nature of Plaintiffs' allegations that Defendant must necessarily possess full information concerning the facts of the controversy so as to warrant the Court's application of a lesser standard of specificity to this fraud-based cause of action. Thus, the Court finds that Plaintiffs have failed to allege sufficient facts to state a cause of action for "fraud by intentional misrepresentation and concealment; constructive fraud."

The demurrer to the seventh cause of action is **sustained**, with leave to amend.

8. Tort per se

Finally, Defendants demur to Plaintiffs' cause of action "tort per se." The statutory bases of Plaintiffs tort per se claim are alleged violations of the Business and Professions Code as well as Civil Code section 1770(a)(2) through (5). Defendants argue that the FAC alleges no specific facts in support of these statutory violations, nor is any money or property loss alleged as a result of JMH's actions.

The UCL broadly prohibits "any unlawful, unfair or fraudulent business act or practice" (Bus. & Prof. Code § 17200.) "Because the statute is framed in the disjunctive, a business practice need only meet one of the three criteria to be considered unfair competition." (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1471.) First, unlawful practices include "any practices forbidden by law,

be it civil or criminal, federal, state, or municipal, statutory, regulatory, or court-made.” (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 838-39.) “It is not necessary that the predicate law provide for private civil enforcement.” (*Id.* at 839.) Second, unfair practices are those “whose harm to the victim outweighs its benefits.” (*Ibid.*) Third, fraudulent practices extend beyond those covered by the common law tort and include any practices that are likely to deceive members of the public. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) The UCL may only be privately enforced “by a person who has suffered injury in fact and has lost money or property as a result of the unfair competition.” (Bus. & Prof. Code § 17204.)

Here, Plaintiffs eight cause of action identifies Business Code §§ 17500, 17508(a), 17200 and Civil Code section 1770(a)(2) through (5). Rather than allege the essential elements of claims under those sections in the eighth cause of action itself, Plaintiffs allude generally to their entire First Amended Complaint. This is inadequate. Moreover, even if Plaintiffs’ conclusory allegations with respect to economic damages were sufficient, the FAC is bereft of allegations that any specific allegedly unfair and fraudulent conduct by Defendants caused their injury in fact.

The demurrer to the eighth cause of action is **sustained**, with leave to amend.

15. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: JOHN MUIR HEALTH WALNUT CREEK MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant John Muir Health, Defendant John Muir Health Walnut Creek Medical Center, Defendant John Muir Health Organized Medical Staff, and Defendant Contra Costa Pediatric Venture LLC (collectively, “Defendants” or “JMH”)’s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code (“CC”) § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and